

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Mara Ellison's Opposition to Summary Judgment

Filed December 12, 2025.

Introduction

Officer Nolan Rusk asks the Court to decide a disputed fourteen seconds in his favor. The record does not permit that choice. Mara Ellison says she recoiled and pulled when Rusk painfully seized her wrist during a noncriminal welfare check. She did not strike him, reach for his duty belt, flee, grab, or threaten anyone. Rusk then applied a five-second drive stun while forcing her to the concrete.

The cameras do not contradict Ellison. Rusk's view is obstructed from approximately 19:53:08 to 19:53:22, and Officer Priya Vega cannot reliably see the hands. Audio records pain and a command; it does not display a strike or equipment reach. A court applying Rule 56 must accept Ellison's supported version rather than use missing imagery as a defense inference.

On that version, the force violated the Fourth Amendment. By February 2025, precedent gave fair notice that serious pain and injurious takedown force cannot answer low-risk noncompliance by an unarmed, distressed person who poses no immediate danger. The motion should be denied.

Opposition — Rule 56 and immunity standards

Rule 56 requires the Court to draw reasonable inferences for Ellison and prohibits credibility weighing. *Tolan v. Cotton*, 572 U.S. 650, 656–60 (2014). Rusk cannot obtain judgment by reciting his testimony as a fact when Ellison offers competent contrary testimony and surrounding evidence does not conclusively displace it.

Qualified immunity does not alter that evidentiary rule. The Court asks whether facts viewed for Ellison show violation of a constitutional right and whether that right was clearly established. *Pearson v. Callahan*, 555 U.S. 223, 231–36 (2009). It may decide those legal questions while a jury remains responsible for disputed history.

The right must be particularized, but not defined by adopting the officer's contested version. The proper assumptions here are that Ellison was an unarmed welfare-check subject; pulled from a painful grasp; did not strike, reach, grab, flee, or pose immediate danger; and received one drive-stun cycle during a forcible takedown. The question is whether reasonable law-enforcement officers had notice that inflicting that force without a safety exigency was excessive.

Opposition — the low-severity welfare encounter

Iris Ellison called for help with a medication and mental-health crisis. She reported no weapon, threat, violence, or crime. Dispatch transmitted a welfare check. Mara remained at her apartment complex and was seated with empty hands visible when Rusk approached. She was distressed, but distress is not a criminal offense or an automatic danger finding.

The seizure began when Rusk grasped her wrist at approximately 19:53:02. Until then, he had seen no weapon, strike, flight, or attack. Vega likewise observed no immediate physical danger. The narrow breezeway required care, but no evidence shows Ellison moved for the stairs before Rusk took control.

These facts matter under *Graham v. Connor*, 490 U.S. 386, 396 (1989). The severity of any suspected offense was nil; the call sought protective assistance. The governmental interest in completing an assessment did not authorize force untethered from threat. On Ellison's version, time, a second officer, calm communication, altered positioning, and less painful control remained available when Rusk escalated.

Opposition — the genuine factual dispute

Ellison testified that the wrist hold hurt, causing her to recoil and pull. She consistently denied punching or striking Rusk and denied moving toward his belt. Her near-contemporaneous statements to Iris and Paramedic Mateo Cole match that account. The original call reported no weapon, and none was found.

Rusk gives a different version. He says Ellison actively twisted, contacted his forearm, and moved toward duty-belt equipment. Those allegations would affect the safety assessment, which is why the dispute is material. But repetition in Rusk's report and testimony does not make the facts undisputed.

Vega supplies no defense-side eyewitness tie breaker. She saw gross movement but could not reliably see the hands. She did not observe a completed strike before her view became crowded and cannot corroborate a belt reach. Rusk sought no treatment for his forearm, though Ellison does not contend the absence of lasting injury conclusively disproves brief contact. A reasonable jury could credit either account. Rule 56 reserves that choice rather than assigning uncertainty to the plaintiff.

Opposition — the recordings do not override testimony

Scott v. Harris, 550 U.S. 372, 378–81 (2007), permits rejection of a version blatantly contradicted by a recording. This record presents the opposite condition: physical occlusion prevents either camera from reliably showing the disputed hands during the decisive interval. Authenticity and incompleteness coexist.

Professor Adrian Crane aligned the files, verified the relevant chronology, and explained why contrast, slow motion, generated frames, or pose interpolation cannot reveal motion hidden behind bodies and clothing. He did not infer that nothing occurred. He concluded the media cannot determine which alleged movement occurred.

The audio does not cure the gap. “Stop pulling” is compatible with Ellison's admitted pulling from pain and does not establish a strike or belt reach. “You're hurting me” documents distress but does not independently prove every aspect of her account. Movement noises lack reliable source attribution. The Court should use the recordings for what they show—sequence, words, one cycle, and obstruction—without converting what they omit into an inference against Ellison.

Opposition — immediate threat and resistance

Immediate threat is the most important *Graham* consideration in many force cases. Under the facts the Court must assume, Ellison was unarmed, surrounded by two officers, and did not strike, grab, reach, flee, or verbally threaten. Pulling from a painful wrist grasp did not create an equipment-access or bystander danger.

Resistance is not binary. *Armstrong v. Village of Pinehurst*, 810 F.3d 892, 901–05 (4th Cir. 2016), explains that noncompliance can justify some force while the amount depends on the danger the resistance presents. It rejects equating physical resistance with immediate safety risk. Ellison does not argue officers had to abandon the welfare encounter. She argues Rusk could not answer low-risk pulling with a painful electrical cycle and takedown absent danger.

Rusk's generic references to a confined space cannot supply the missing threat. The record does not show Ellison lunging for the stairs or endangering another resident. A location may inform positioning, but it cannot transform disputed conduct into an established attack. The assumed facts support controlled restraint and communication, not the challenged escalation.

Opposition — force magnitude and changing circumstances

The device operated in drive-stun mode for five seconds. Contact mode is intended to impose localized pain to gain compliance. Rusk simultaneously forced Ellison down. The result was a wrist abrasion, two superficial contact burns, shoulder strain, and no fracture.

The absence of a broken bone does not make the force trivial. Fourth Amendment analysis considers the nature and purpose of force, not only final diagnosis. One deliberately painful cycle can be unreasonable when the governmental need is slight. Nor does the lack of repeated cycles answer whether the first cycle was justified.

Circumstances also must be assessed at each phase. Before hands-on contact, the record allowed communication and spacing. After Rusk grasped the wrist, Ellison pulled but, on her version, created no immediate danger. When the cycle ended, officers proceeded to cuffs without more electrical force. Cessation was proper, yet it cannot retroactively justify activation. The legal question concerns the five seconds Rusk selected, evaluated against the threat and resistance the Court must assume existed then.

Opposition — plaintiff expert and defense concession

Dr. Dana North applies police-practices principles to explicit alternatives. On Ellison's facts, North concludes that crisis communication, adjusted control, assistance from Vega, and repositioning were feasible and that the drive stun was disproportionate without immediate danger. She does not claim officers must exhaust every theoretical alternative.

Retired Captain Rowan Pike reaches a defense-favorable result only by assuming Rusk perceived a strike and belt reach. On cross-examination and in his report, Pike concedes that removing those facts removes his equipment-access rationale. He does not opine that the cycle was justified on Ellison's version.

Expert testimony does not decide the constitutional question, but the conditional structure shows why Rusk cannot collapse the record into an undifferentiated “resistance” fact. Even his expert recognizes that painful recoil and pulling without danger present a materially different force problem from an attack on an officer's equipment. The Court should analyze the plaintiff-favorable branch, not average it with Rusk's contested branch.

Opposition — clearly established law after *Armstrong*

By February 2025, Fourth Circuit law gave particular notice that substantial force against a nonthreatening, unarmed person is disproportionate to low-risk resistance. *Armstrong* held that officers used excessive force when they tased a mentally ill person whose resistance did not pose immediate danger. Although immunity applied to the 2011 conduct there, the published decision expressly gave future officers notice of the constitutional rule. 810 F.3d at 907–09.

Rusk emphasizes that *Armstrong* involved repeated probe-mode tasing and a person clinging to a post. Those facts affect magnitude, but they do not erase its reasoned distinction between noncompliance and danger. Ellison challenges a single drive-stun cycle plus takedown; her particularized right does not depend on proving identical hardware settings or repetition.

The relevant common features are an involuntary protective encounter, known mental-health distress, an unarmed person, limited resistance, no immediate threat, and painful force used to compel submission. Under Ellison's assumed facts, those features placed Rusk on fair notice that the escalation required a danger not present here.

Opposition — the broader clearly established line

Other pre-event decisions reinforce the rule. *Smith v. Ray*, 781 F.3d 95, 102–04 (4th Cir. 2015), denied immunity where force answered modest movement by a non-dangerous person. *Meyers v. Baltimore County*, 713 F.3d 723, 733–35 (4th Cir. 2013), treats continued taser use as excessive after immediate danger ends. *Yates v. Terry*, 817 F.3d 877, 884–88 (4th Cir. 2016), applies clearly established limits to taser use against a nonthreatening person.

The Court need not find a case containing the same apartment railing, wrist grip, five-second contact mode, and words on the audio. Existing precedent must make unlawfulness apparent in the particular circumstances, not reproduce every fact. The cases repeatedly connect serious or painful force to immediate threat and meaningful resistance.

Rusk's version would distinguish that line because a strike and belt reach create danger. But those are the disputed facts the Court must exclude from Ellison-favorable legal analysis. On the proper assumptions, this is not a borderline equipment-access case. It is force against an unarmed person pulling from pain without an immediate safety exigency.

Opposition — mental-health context without categorical rules

Ellison does not assert that officers may never use force during a mental-health call. A person in crisis may present an immediate danger, and officers may respond proportionately. The point is that mental illness neither creates danger by itself nor reduces Fourth Amendment protection.

Here, Iris requested assistance and warned that unexpected touch could worsen distress. Dispatch reported no weapon or threat. Ellison was seated and empty-handed. On her account, physical movement began as a response to painful wrist control. These circumstances gave officers reason to distinguish crisis behavior from assault, not license to presume the latter.

Rusk argues officers cannot know whether an unreported weapon exists. That is true in virtually every contact and cannot establish individualized immediate danger. The Fourth Amendment permits reasonable precautions; it does not allow substantial pain whenever uncertainty remains. Once the legal analysis assumes no strike, grab, reach, flight, or threatening motion, the asserted equipment danger disappears. The welfare purpose then weighs against, rather than categorically prohibits, the force chosen.

Opposition — medical and post-event evidence

Cole observed the wrist abrasion and two superficial contact burns, documented shoulder pain, and transferred Ellison for further care. Medical-center imaging showed no fracture and the assessment identified shoulder strain. Ellison does not inflate those findings. They corroborate that the contact cycle and takedown imposed more than a nominal touch.

Cole also recorded Ellison's history that she pulled because the wrist grasp hurt and neither struck Rusk nor reached for his belt. Iris heard the same essential denial close in time. Those statements do not make either listener an eyewitness to the hidden motion, but they support the consistency of Ellison's account.

After the scene stabilized, Ellison cooperated with assessment and transport and made no threat. Later behavior cannot conclusively establish earlier conduct, and Ellison does not offer it for that improper purpose. It supplies context for the limited nature of the welfare concern and undercuts any suggestion that continuing force was required. The constitutional dispute remains focused on Rusk's initiation of the cycle, not on care that followed.

Opposition — disposition and necessary factual statement

The Court should deny summary judgment on objective reasonableness because a jury could credit Ellison's testimony, Vega's limited observations, contemporaneous statements, and expert evidence. It should also deny qualified immunity as a matter of law on Ellison's facts. The relevant law was established before February 2025 and did not permit painful electrical force and a takedown to answer low-risk pulling without immediate danger.

The order should state the assumed facts with care: Ellison was unarmed and distressed; the call reported no crime, weapon, or threat; she pulled or recoiled from painful wrist control; she did not strike, grab, flee, reach toward duty-belt equipment, or pose an immediate safety danger; and Rusk nevertheless used one five-second drive-stun cycle while forcing her down.

That statement would not find that Ellison's account is true. It would preserve the jury's role while making clear that Rusk is not legally entitled to immunity if those facts are found. The Court should not describe the obstructed recording as conclusive or permit the immunity defense to become a vehicle for deciding evidentiary sufficiency in Rusk's favor.

Respectfully submitted,

Fictional Counsel for Mara Ellison